



2090102035

Page: 1 of 6

1/21/2009 4:30 PM

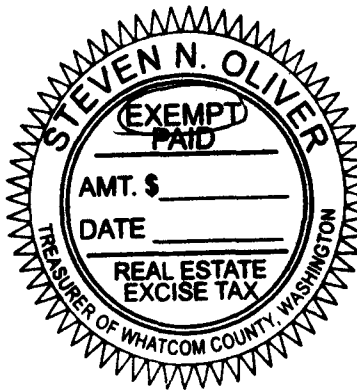
EASE \$47.00

Whatcom County, WA

Request of: SOUTH DOUGLAS LLC

WHEN RECORDED RETURN TO:

BRADLEY D. SWANSON
BELCHER SWANSON LAW FIRM, P.L.L.C.
900 DUPONT STREET
BELLINGHAM, WA 98225



Document Title:	Reciprocal Stormwater Facilities Easement
Grantor/Borrower:	1) South Douglas, LLC, a Washington limited liability company 2) Douglas Place, LLC, a Washington limited liability company
Grantee/Assignee/Beneficiary:	1) South Douglas, LLC, a Washington limited liability company 2) Douglas Place, LLC, a Washington limited liability company
Legal Description:	1) Ptn of Lot B, Douglas Road Lot Line Adjustment 2) Ptn of Lot A, Douglas Road Lot Line Adjustment
Assessor's Tax Parcel ID#:	1) 390230 024422 0000 2) 390230 054435 0000

RECIPROCAL STORMWATER FACILITIES EASEMENT

THIS RECIPROCAL STORMWATER FACILITIES EASEMENT, herein after referred to as "Easement", is made an entered into this 8 day of Jan., 2009 by and between South Douglas, LLC, a Washington limited liability company, hereinafter referred to as "South Douglas," and Douglas Place, LLC, a Washington limited liability company, hereinafter referred to as "Douglas Place."

RECITALS

A. South Douglas owns certain real property located in Ferndale, Whatcom County, Washington, legally described as follows:

LOT B OF THE DOUGLAS ROAD LOT LINE ADJUSTMENT, AS FILED UNDER AUDITOR'S FILE NO. 2070801956, RECORDS OF WHATCOM COUNTY, WASHINGTON.

SITUATE IN WHATCOM COUNTY, WASHINGTON.

Hereinafter referred to as the "South Douglas Property."

B. Douglas Place owns certain real property located in Ferndale, Whatcom County, Washington, legally described as follows:

LOT A OF THE DOUGLAS ROAD LOT LINE ADJUSTMENT, AS FILED UNDER AUDITOR'S FILE NO. 2070801956, RECORDS OF WHATCOM COUNTY, WASHINGTON.

SITUATE IN WHATCOM COUNTY, WASHINGTON.

Hereinafter referred to as the "Douglas Place Property".

C. The South Douglas Property is directly west and adjacent to the Douglas Place Property.

D. South Douglas is presently platting the South Douglas Property (the "South Douglas Plat"). Douglas Place is presently platting the Douglas Place Property (the "Douglas Place Plat"). Collectively, the South Douglas Plat and the Douglas Place Plat shall be referred to as the "Douglas Plats."

E. As part of the platting process, the City of Ferndale required South Douglas and Douglas Place to construct storm drainage improvements for their respective plats. Because these properties are adjacent to each other, South Douglas and Douglas Place elected to jointly construct one stormwater detention/treatment pond with appurtenances (the "Stormwater Facilities") for the Douglas Plats.

F. The Stormwater Facilities are defined as those private facilities constructed for the Douglas Plats used for treating and detaining storm waters, which shall only include the detention pond, the perimeter fence and gates, the overflow spillway, the rocked pond inlets, the outfall pipe to the control structure, the control structure, and access roads. These improvements are identified on the face of the plat maps for each of the Douglas Plats or the approved construction plans for each of the Douglas Plats.

G. The Stormwater Facilities are located in part on the South Douglas Property and in part on the Douglas Place Property. The Stormwater Facilities are fully constructed and approved by the City of Ferndale.

H. South Douglas and Douglas Place mutually agree that during the initial phases of platting, prior to South Douglas and Douglas Place turning over their respective

plats to one or more Homeowners Associations, it is necessary to grant the other party the right to access the Stormwater Facilities over its property.

I. The intent of this Easement is to grant each party the right to come onto the other's property for the sole purpose of maintaining, operating, repairing, reconstructing, and replacing of the Stormwater Facilities until such time as the parties believe that the Douglas Plats are developed enough for the Homeowners Association(s) to properly maintain, operate, repair, reconstruct, and replace the Stormwater Facilities.

NOW, THEREFORE, in consideration of the mutual covenants contained herein and other good and valuable consideration, which the parties hereby acknowledge, the parties grant and convey as follows:

1. South Douglas to Douglas Place Stormwater Facilities Easement.

South Douglas hereby grants and conveys to Douglas Place a perpetual, nonexclusive easement across, over and under the South Douglas Property for the following limited purposes: (1) accessing the Stormwater Facilities for maintenance, operation, repair, reconstruction, and replacement of said Stormwater Facilities and (2) maintaining, operating, repairing, reconstructing, and replacing the portion of the Stormwater Facilities located on the South Douglas Property.

2. Douglas Place to South Douglas Stormwater Facilities Easement.

Douglas Place hereby grants and conveys to South Douglas a perpetual, nonexclusive easement across, over and under the Douglas Place Property for the following limited purposes: (1) accessing the Stormwater Facilities for maintenance, operation, repair, reconstruction, and replacement of said Stormwater Facilities and (2) maintaining, operating, repairing, reconstructing, and replacing the portion of the Stormwater Facilities located on the Douglas Place Property.

3. Benefit. The easements identified in Paragraphs 1 and 2, as well as all of the rights and obligations set forth herein, shall inure to the benefit of (1) the parties hereto and their respective heirs, assigns, successors to and personal representatives and (2) any Homeowners Association(s) created for the Douglas Plats.

4. **Covenant Running with the Land.** In all respects, the provisions of this Easement shall be construed as covenants which run with the land and are appurtenant to the land of the parties above described.

5. **Excludes Platted Lots.** The easements granted in Paragraphs 1 and 2 do not grant either party the right to go across, over, or under any platted lots (existing now or in the future) created by the Douglas Plats.

6. **Indemnity.** Each party shall indemnify, hold harmless, and defend the other party from any and all claims for injuries and/or damages suffered by any person or property, which may be caused by that party's exercise of any rights or performance of any obligations provided for herein. This indemnity shall survive the expiration or termination of this Easement.

7. **Maintenance.** Both parties shall have a joint obligation to maintain, operate, repair, reconstruct, or replace the Stormwater Facilities. Any private property damaged during any such maintenance, operation, repair, reconstruction, or replacement activities shall be restored to its condition immediately prior to any such activities. The parties shall share the costs of any reasonable maintenance, operation, repair, reconstruction, or replacement of the Stormwater Facilities and any necessary restoration equally, with each party paying one half of such costs. In the event either of the Douglas Plats creates covenants, conditions, reservations, and restrictions ("CCRs") that determine an alternate method by which maintenance costs to the Stormwater Facilities are shared, the method contained in those CCRs shall govern.

8. **No waiver.** Failure to enforce any provision of this Easement shall not operate as a waiver of any such provision.

9. **Attorney's fees.** In the event any of the parties institute suit to enforce the Easement, the successful party shall be entitled to court costs and reasonable attorney's fees against the losing party.

10. **Severability.** Invalidation of any of the provisions of this Easement by judgment or court order shall in no way affect any of the other provisions, which shall remain in full force and effect.

11. **Modification/Termination of Easement.** Any modification of this Easement or additional obligations assumed by any party in connection with this

Easement shall be binding only if evidenced in writing signed by all parties. Termination of this Easement shall only be effective only if evidenced in writing signed by both parties.

12. **Entire agreement.** This Access Easement contains all representations and is the entire understanding between the parties hereto with respect to the subject matter hereof.

– Signatures on the Following Page –

IN WITNESS WHEREOF, the parties have executed this document as of the
date first above written.

DOUGLAS PLACE, LLC

SOUTH DOUGLAS, LLC

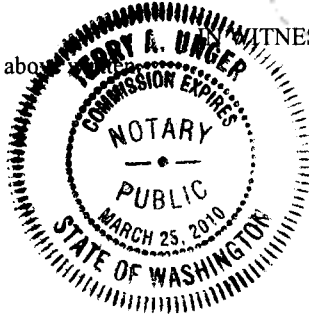
By: Douglas S. Marr
DOUGLAS MARR, Manager

By: William Kramer
WILLIAM KRAMER, Member

STATE OF WASHINGTON)
)ss.
COUNTY OF WHATCOM)

On this 8 day of January, 2009, before me personally appeared WILLIAM KRAMER, to
me known to be the member of the limited liability company that executed the within and foregoing instrument to be
the free and voluntary act and deed of said corporation for the uses and purposes therein mentioned, and on oath stated
that he was authorized to execute said instrument.

IN WITNESS WHEREOF, I have hereunto set my hand and official seal the day and year first
above written.

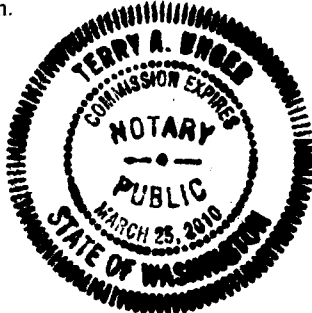


Terry A. Unger
Printed Name: Terry A. Unger
Notary Public in and for the State of Washington,
residing at Bellingham.
My Commission Expires: 3/25/10

STATE OF WASHINGTON)
)ss.
COUNTY OF WHATCOM)

On this _____ day of January, 2009, before me personally appeared DOUGLAS MARR, to
me known to be the manager of the limited liability company that executed the within and foregoing instrument to be
the free and voluntary act and deed of said corporation for the uses and purposes therein mentioned, and on oath stated
that he was authorized to execute said instrument.

IN WITNESS WHEREOF, I have hereunto set my hand and official seal the day and year first
above written.



Terry A. Unger
Printed Name: Terry A. Unger
Notary Public in and for the State of Washington,
residing at Bellingham.
My Commission Expires: 3/25/10

N:\WP\BDS\CLIENTS\South Douglas\CCRs\Docs\Reciprocal Stormwater Facilities Easement 2009-01-08.doc